

APPLICATION FOR ORDER OF SEGREGATION OF RECORDS PURSUANT TO KRS 17.142

IN THE COURT OF COUNTY,
COMMONWEALTH OF KENTUCKY

(The court is the one in which the case was tried, or in which it would have been tried had charges been filed. No recorded source resolves the court LEVEL for this application, and the circuit court clerk files for both District and Circuit Court - so ask that county's circuit court clerk which court to name, and where no charges were filed, which court would have heard it.)

Maria-Alejandra O'Shaughnessy-Whitfield,
APPLICANT.

Case number of the underlying case, if charges were filed:

.....

APPLICATION FOR ORDER OF SEGREGATION OF RECORDS PURSUANT TO KRS 17.142

STATUTORY AUTHORITY

KRS 17.142(2) - The person may apply to the court, upon receipt of which the court shall forthwith issue an order to all law enforcement agencies.

KRS 17.142(1) - The substantive condition the application rests on: the person was found innocent, or all charges relating to the offence were dismissed or withdrawn.

KRS 17.142(3) - What the order reaches: each agency segregates the records into a file separate and apart from those of convicted persons, must notify every agency it shared the records with, and the segregated record must show the disposition of the case.

KRS 17.142(4) - The limit on scope: records subject to KRS 431.076 or KRS 431.078 fall under those statutes instead, and this application does not reach them.

STATEMENT OF THE APPLICANT

1. The applicant, Maria-Alejandra O'Shaughnessy-Whitfield, states the following from the applicant's own records:

Date of the arrest:

.....

What the arrest was for, in the applicant's own words:

.....

How the matter ended - found innocent, all charges relating to the offence dismissed, or all charges relating to the offence withdrawn - and the date it ended:

.....

2. Law enforcement and other public agencies hold arrest records, fingerprints, photographs or other data relating to that arrest.

REQUESTED RELIEF

WHEREFORE, the applicant requests that this Court grant this application and, as KRS 17.142(2) provides, forthwith issue an order to all law enforcement agencies directing the segregation of the arrest records, fingerprints, photographs and other data relating to the arrest identified in this application, held by law enforcement and other public agencies, with each agency notifying every agency with which it has shared the records and the segregated record showing the disposition of the case, as KRS 17.142(3) requires.

DATE SIGNATURE OF APPLICANT

(The applicant signs and dates this application personally. Nothing on this page is signed or dated for the applicant. No source read for this track addresses whether the application must be verified; ask the circuit court clerk whether anything further is required, and this open point travels with the packet into counsel review.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Bowling Green, Kentucky
42101-2214

TELEPHONE: (270) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Routes: obligation:unit:KY:ky_criminal_record_segregation:ky_seg_court_application ;
obligation:unit:KY:ky_criminal_record_segregation:ky_seg_agency_written_request

WRITTEN REQUEST TO AN AGENCY FOR SEGREGATION OF RECORDS (KRS 17.142(1))

(One letter goes to EACH agency you identify - the arresting agency, the jail, the state police, any other holder. Copy this page as many times as you need. You address the envelopes and post each letter yourself.)

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
1188 Upper Notch Crossing Road, Apartment 14B, Bowling Green, Kentucky 42101-2214

Date this letter is posted:

TO (name of the agency holding the records):

.....

Mailing address of that agency:

.....

RE: WRITTEN REQUEST TO SEGREGATE ARREST RECORDS UNDER KRS 17.142(1)

To whom it may concern:

I am writing to make a written request under KRS 17.142(1) that your agency segregate the records described below.

Date of the arrest:

.....

County of the arrest:

.....

What the arrest was for, in my own words:

.....

How the matter ended - I was found innocent, all charges relating to the offence were dismissed, or all charges relating to the offence were withdrawn - and the date it ended:

.....

Case number, if charges were filed:

.....

I believe your agency holds arrest records, fingerprints, photographs or other data relating to that arrest.

KRS 17.142(1) requires a law enforcement agency or other public agency holding such records to segregate them, on the written request of the arrestee, into a file separate and apart from those of persons who have been convicted, where the person was found innocent or where all charges relating to the offence were dismissed or withdrawn. This letter is that written request.

KRS 17.142(3) also requires each agency that segregates records to notify every agency it shared those records with, and requires that the segregated record show the disposition of the case.

I ask that you segregate these records accordingly. Please write to me at the address above if you need anything further from me.

SIGNATURE

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

(You sign each letter personally. This letter deliberately carries none of your personal identifying numbers - it does not need them, so do not add any.)

Routes: obligation:unit:KY:ky_criminal_record_segregation:ky_seg_court_application ;
obligation:unit:KY:ky_criminal_record_segregation:ky_seg_agency_written_request

READ THIS FIRST: WHETHER SEGREGATION IS THE RIGHT ROUTE AT ALL

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

SEGREGATION IS THE WEAKEST KENTUCKY ROUTE, AND OFTEN NOT THE RIGHT ONE.
Read this page before using either instrument in this packet.

FIRST: CHECK THE STRONGER ROUTES. KRS 17.142(4) sends records subject to KRS 431.076 or KRS 431.078 to those statutes instead - they are sealed or expunged there, which is materially stronger relief. In practice that covers most acquittals and dismissals, so segregation is a fallback; the clearest records left for this route are charges that were WITHDRAWN. If your records have already been expunged, or you are eligible to expunge them under Kentucky's acquittal, dismissal or conviction expungement statutes, use those routes first.

WHAT SEGREGATION DOES, HONESTLY. The records continue to exist and remain accessible. They are filed separately from the records of convicted persons, the segregated record must show how your case ended, and each agency must notify every agency it shared the records with. A background check is not made clean by segregation.

WHAT IT CANNOT REACH. Court records are not records which may be segregated. This route reaches law enforcement and other public agency records only.

THE TWO INSTRUMENTS, AND WHOSE CHOICE IT IS. The court application asks the court for one order that reaches every law enforcement agency at once. The written requests go directly to each agency you identify, with no court involved. Either obtains segregation independently, and you may use both. Which to use is your choice alone - this packet does not make it for you.

MECHANICS. On the court route, file the application with the circuit court clerk in the county where the case was or would have been tried; no fee is identified for either route, and no notice to a prosecutor or any other party is required. On the agency route, you sign each letter, address each envelope and post the letters yourself. No source read for this track states what an agency must do on receipt, in what time, or what your recourse is if nothing happens - if an agency does not act, take this packet to a lawyer or legal-aid office.

WHEN TO STOP AND GET HELP INSTEAD:

- your records are eligible under KRS 431.076 or KRS 431.078, which should be used instead because they are stronger;
- you expect court records to be reached - they cannot be;
- you expect background checks to come back clean - segregation does not do that;
- there is any dispute about whether ALL charges relating to the offence were dismissed or withdrawn.

Routes: obligation:unit:KY:ky_criminal_record_segregation:ky_seg_court_application ;
obligation:unit:KY:ky_criminal_record_segregation:ky_seg_agency_written_request